

Court No. - 2

Case :- WRIT - C No. - 67064 of 2010

Petitioner :- Neena Rani

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sheo Kumar Singh, J.

Hon'ble S.C. Agarwal, J.

Sri Pankaj Misra, holding brief of Sri Pankaj Kumar Shukla, learned Advocate appeared for the respondents. He may obtain instructions in the matter and to place before this court the complete/correct facts.

As prayed, put up this matter on 23rd November, 2010, as fresh.

Order Date :- 16.11.2010

M.A.A.

Court No. - 2

Case :- WRIT - C No. - 67064 of 2010

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Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sheo Kumar Singh, J.

Hon'ble Rajesh Chandra, J.

As prayed by the counsel for the Power Corporation, put up on 29.11.2010 as fresh.

Order Date :- 23.11.2010

VPC

Chief Justice's Court

Case :- WRIT - C No. - 67064 of 2010

Petitioner :- Neena Rani

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

On behalf of the respondents, learned counsel submits that if the petitioner furnishes a bond in terms of Annexure 4.2 of the Electricity Supply Code, then the respondents will give the electricity connection.

On behalf of the petitioner, learned counsel submits that the petitioner is willing to furnish the said bond.

In view of the above statement on behalf of the petitioner, we dispose of this petition with a direction that in case the petitioner furnishes the concerned bond in the proper format, the respondents will provide the electricity connection to the petitioner within two weeks from the date the said bond is furnished.

With the above observation, the petition stands disposed of.

(Vineet Saran, J.) (F.I. Rebello, C.J.)

Order Date :- 29.11.2010

AHA

Chief Justice's Court

Case :- WRIT - C No. - 67064 of 2010

Petitioner :- Neena Rani

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Order on C.M. (Recall) Application No.73625 of 2011:

This is an application by a person, who was not a party to the writ petition. It is contended that though she is in possession, the petitioner has wrongly and in connivance with the respondents got a direction to restore the electricity connection.

Though the petitioner has been served, none is present today. On behalf of the other respondents, learned counsel seeks time to take instructions in the matter.

The applicant to serve a copy of the application on the counsel for the respondents.

Place the matter on board on 29th April, 2011.

Order Date :- 8.4.2011

RKK/-

(F.I. Rebello, CJ)

(Vineet Saran, J)

Chief Justice's Court

Case :- WRIT - C No. - 67064 of 2010

Petitioner :- Neena Rani

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Re: Civil Misc. (Recall) Application No. 73625 of 2011

List on 5.5.2011.

Order Date :- 29.4.2011

aBHIShEk

(Vineet Saran, J.)

(F.I. Rebello, C.J.)

Chief Justice's Court

Case :- WRIT - C No. - 67064 of 2010

Petitioner :- Neena Rani

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Neeraj Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Order on C.M. (Recall) Application No. 73625 of 2011

Heard.

We are not inclined to interfere. There is a title suit filed by the applicant herein against the original allottee Sri Ugrasen Jain, which is pending. The petitioner herein claims ownership through Sri Ugrasen Jain.

The fact, that this Court had directed the respondent authorities to issue electricity connection in favour of the petitioner herein by itself would not mean that the said order confers any right in favour of the petitioner.

Accordingly, the application is rejected

Order Date :- 5.5.2011 (Vineet Saran, J) (F.I. Rebello, CJ)
RK

C.M. Delay Condonation Application No. 73620 of 2011

IN

Case :- WRIT - C No. - 67064 of 2010

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Grounds taken are sufficient.

The delay in filing the recall application is condoned.

Application stands disposed of.

Order Date :- 5.5.2011 (Vineet Saran, J) (F.I. Rebello, CJ)
RK

C.M. (Impleadment) Application No. 73623 of 2011

IN

Case :- WRIT - C No. - 67064 of 2010

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

Heard.

Rejected.

Dt.:- 5.5.2011 (Vineet Saran,J) (F.I. Rebello,CJ)

RK